

Ecclesiastical Offices (Age Limit) Measure 1975

1975 No. 2

A MEASURE passed by the General Synod of the Church of England to make provision with respect to the age limit for the holding of certain ecclesiastical offices.
[1st August 1975]

1.—(1) Subject to subsection (2) of this section, no person shall be capable of being appointed or presented to an office listed in the Schedule to this Measure if at the time of his appointment or presentation he has attained the age of seventy years.

Age limit for appointment, etc. to certain ecclesiastical offices.

(2) Subsection (1) of this section shall not apply to an office in a Royal Peculiar nor to the office of residentiary canon in a cathedral church if the canonry is annexed to a professorship in a university nor to the office of dean of the Cathedral Church of Christ in Oxford.

(3) Subject to the following provisions of this Measure, a person who holds an office listed in the Schedule to this Measure shall vacate that office on the day on which he attains the age of seventy years.

(4) Subsection (3) of this section shall not apply to—

- (a) any person who holds an office in a Royal Peculiar ; or
- (b) any person who holds a residentiary canonry which is annexed to a professorship in a university ; or
- (c) any person who holds the office of dean of the Cathedral Church of Christ in Oxford ; or
- (d) any person who at the commencement of this Measure holds any office listed in the said Schedule unless and until he vacates the office held by him at the said commencement.

(5) The foregoing provisions shall have effect notwithstanding anything in any Measure passed before the date of the passing of this Measure, or in any instrument made under such a Measure or in the constitution and statutes of a cathedral church.

2. Where Her Majesty considers that there are special circumstances which make it desirable that a person holding the office of archbishop should continue in that office after the date on which he would otherwise retire in accordance with the foregoing section, She may authorise the continuance in office of that person after that date for such period, not exceeding one year, as She may in her discretion determine.

Archbishop may continue in office for certain period after attaining retiring age at discretion of Her Majesty.

Provisions
with respect
to continuance
in office of
other office
holders after
attainment of
retiring age.

3.—(1) Where—

- (a) an archbishop considers that there are special circumstances which make it desirable that a person holding the office of diocesan bishop in his province should continue in that office after the date on which he would otherwise retire in accordance with section 1 of this Measure, or
- (b) a diocesan bishop considers that there are special circumstances which make it desirable that a person holding the office of suffragan bishop, dean, provost, residentiary canon or archdeacon in his diocese should continue in that office after the date on which he would otherwise retire in accordance with that section,

the archbishop or bishop, as the case may be, may from time to time authorise the continuance in that office of that person after that date for such period or further period, not exceeding one year in all, as he may specify.

(2) Where a diocesan bishop considers that the pastoral needs of a parish in his diocese or of his diocese make it desirable that a person holding—

- (a) the office of incumbent of a benefice in his diocese, or
- (b) the office of vicar in a team ministry established for the area of any benefice in his diocese,

should continue in that office after the date on which he would otherwise retire in accordance with section 1 of this Measure, the bishop may, with the consent of the parochial church council of the parish, or, as the case may be, of each of the parishes, belonging to the benefice, from time to time authorise the continuance in that office of that person after that date for such period or further period, not exceeding two years in all, as he may specify.

(3) Where the Bishop of London considers it to be desirable on pastoral grounds that a person holding the office of vicar of a guild church should continue in that office after the date on which he would otherwise retire in accordance with section 1 of this Measure, he may, with the consent of the guild church council, from time to time authorise the continuance in that office of that person after that date for such period or further period, not exceeding two years in all, as he may specify.

Declaration
of vacancy in
archbishopric
or bishopric.

4.—(1) Not less than six months before the date on which an archbishop is required to vacate his office in accordance with section 1 of this Measure he shall tender his resignation to Her Majesty, and her Majesty may by Order in Council declare the archbishopric vacant as from that date or, if She decides to exercise her discretion under section 2 thereof, as from such later date as She may determine under that section.

(2) Not less than six months before the date on which a person holding the office of diocesan bishop or suffragan bishop is required to vacate his office in accordance with this Measure the archbishop of the province in which that bishop holds office shall declare the bishopric vacant as from that date, but the declaration shall not take effect unless and until it is confirmed by Her Majesty in Council.

(3) Where a declaration declaring a bishopric vacant has been made under this section by an archbishop, he shall send a copy thereof to Her Majesty with a petition that the declaration may be confirmed, and upon receipt of the petition Her Majesty may by Order in Council confirm the declaration.

(4) Where an Order in Council is made under subsection (1) or (3) of this section, the vacancy may be filled in the same manner and with the same incidents in all respects as if the archbishop or bishop, as the case may be, were dead.

5.—(1) The powers exercisable by a diocesan bishop under this Measure shall during the absence abroad or incapacity through illness of the bishop or a vacancy in the see be exercisable by the archbishop of the province or a person appointed by him. Exercise of powers of bishop or archbishop during absence abroad, etc.

(2) The powers exercisable by an archbishop under this Measure shall during the absence abroad or incapacity through illness of the archbishop or a vacancy in the see be exercisable by the other archbishop.

6. In this Measure—

Interpretation.

“benefice” means a benefice with cure of souls and includes all rectories and vicarages with cure of souls;

“incumbent”, in relation to a benefice, means a rector or vicar with cure of souls but does not include the dean or provost of a cathedral church.

7.—(1) This Measure may be cited as the Ecclesiastical Offices (Age Limit) Measure 1975. Short title, extent and commencement.

(2) This Measure shall extend to the whole of the province of Canterbury except the Channel Islands, but may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957, or either of them, in accordance with those Measures. 1931 No. 4
1957 No. 1

(3) This Measure shall extend to the whole of the province of York except the Isle of Man, but notwithstanding that exception this Measure shall, subject to section 1(4)(d) thereof, apply to the Bishop of Sodor and Man.

(4) This Measure shall come into operation on such day as the Archbishops of Canterbury and York may jointly appoint and the day so appointed shall be notified in the London Gazette.

Section 1 (3).

SCHEDULE

OFFICES TO WHICH SECTION 1 APPLIES

Archbishop.

Diocesan Bishop.

Suffragan bishop.

Dean or provost of a cathedral church.

Residentiary canon in a cathedral church.

Archdeacon.

Incumbent of a benefice.

1968 No. 1

Vicar in a team ministry established under the Pastoral Measure 1968.

Vicar of a guild church.